

within 30 days. (See Cal. Code of Civ. Proc. §§2030.260, 2033.250, and 2031.260.) On May 1, 2025, Defendant filed an ex parte request to stay the case pending the disposition of the motion to compel binding arbitration which was scheduled past Defendant's deadline for providing discovery. That same day, the court ordered the matter stayed, including discovery, except discovery related to the motion to compel arbitration. (See Order Granting Defendant Future Ford of Concord's Ex Parte Application for an Order Staying the Instant Case Pending Resolution of its Motion to Compel Arbitration, filed May 1, 2025, p. 1.)

On July 18, 2025, the motion to compel arbitration and to stay the case was heard by the Honorable Judge John M. True III and was granted; the case was stayed in full as of that date. The order was signed by the Honorable Judge Danielle Douglas on August 7, 2025, pursuant to California Code of Civil Procedure section 635, and filed August 11, 2025. Nonetheless, on August 13, 2025, Plaintiff filed a motion to compel discovery responses and for sanctions.

While Plaintiff has filed a motion for reconsideration of the order granting Defendant's motion to compel arbitration, set before the court on March 20, 2026, this does not change the court's current order staying the proceedings including the discovery motion before this judge.

This court recognizes that pursuant to the recently enacted California Code of Civil Procedure section 1294, when a litigant perfects an appeal from an order dismissing or denying a petition to compel arbitration, the proceedings in the trial court are not automatically stayed during the pendency of the appeal rather it is now within the court's discretion to issue a stay. (Cal. Code of Civil Procedure §1294). This exception to an automatic stay, however, is not applicable here. There is no appeal pending, nor did the court dismiss or deny the petition to compel arbitration, indeed the motion to compel arbitration was granted. As such, the court's August 7, 2025, signed order "to submit this matter to arbitration in accordance with the terms of the Arbitration Provision in the RISC" and staying "this matter...in full, pending conclusion of the arbitration" is binding on this court and all discovery motions are stayed until the conclusion of arbitration. (See Order Granting Defendant's Motion to Compel Binding Arbitration Pursuant to Contract and Stay this Case, signed August 7, 2025, filed August 11, 2025, p. 7.)

Plaintiff filed his motion to compel discovery responses and for sanctions after the court stayed the proceedings in full. This court cannot consider the motion because of the stay. Furthermore, discovery matters are customarily handled in the arbitration process (see e.g. Cal. Code of Civ. Proc. §1283.05) but if there are additional issues remaining following arbitration, those issues may be addressed through appropriate motions, if necessary, or at further status conferences.

Courtroom Clerk's Session

2. 1:30 PM CASE NUMBER: C23-02910
CASE NAME: JESUS TORRES VS. JORODA, INC.
SETTLEMENT CONFERENCE IN-PERSON
FILED BY:
TENTATIVE RULING:

Counsel and parties authorized to settle the matter are to appear in Department 20 for good faith settlement discussions.